

Rajasthan Opium Smoking Prohibition Act, 1950

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State of Rajasthan - Act

Rajasthan Opium Smoking Prohibition Act, 1950

RAJASTHAN

India

Rajasthan Opium Smoking Prohibition Act, 1950

Act 7 of 1950

Published on 1 January 1950

Commenced on 1 January 1950

[This is the version of this document as it was from 29 January 1994 to None.]

[Note: The original publication document is not available and this content could not be verified.]

The Rajasthan Civil Courts Ordinance, 1950

Ordinance No. 7 of 1950

Statement of Objects and Reasons (Act 16 of 2015). - Amendment regarding revisiting the pecuniary jurisdiction of civil courts and change in the nomenclature of the civil courts/posts were made in the Rajasthan Civil Courts (Amendment) Act, 2014. The Rajasthan High Court has suggested further to amend the nomenclature of post of Civil Judge to Senior Civil Judge in sub-section (2) of Section 5. Therefore, sub-section (2) of section 5 of the Rajasthan Civil Courts Ordinance, 1950 is proposed to be substituted to incorporate the amendment suggested by the High Court. The amendment is also proposed to give effect from 8th August, 2014, the date on which the Rajasthan Civil Courts (Amendment) Act, 2014 came into force.

The Bill seeks to achieve the aforesaid object.

Hence the Bill.

Statement of Objects and Reasons. - Having regard to the fact that more than two decades have passed after the last amendment in the Rajasthan Civil Courts Ordinance, 1950 regarding pecuniary jurisdiction, the pecuniary jurisdiction assigned to the civil courts requires a revisit. Also, the present nomenclature of the civil courts/posts requires to be replaced.

Hon'ble the High Court of Rajasthan in its Full Court meeting held on 05-04-2014 considered both the above matters i.e. revisiting the pecuniary jurisdiction of the civil courts and change in the nomenclature of the courts/posts. Therefore, the State Government, in pursuance of the resolution passed in the Full Court meeting, has proposed to amend suitably the relevant provisions of the Rajasthan Civil Courts Ordinance, 1950.

The Bill seeks to achieve the aforesaid objectives.

Hence the Bill.]

[Promulgated by His Highness, the Rajpramukh, on the 24th day of January, 1950]

An Ordinance to consolidate and amend the law relating to Civil Courts in [the State of Rajasthan]

[Substituted and omitted vide item No. (1) of the Schedule to the Rajasthan Act

No. 2 of 1957

, published in the Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957. This Ordinance now extend to the whole of the State of Rajasthan including the Abu, Ajmer and Sunel areas and any law corresponding to this Ordinance in force in the Abu area. Ajmer area or Sunel area immediately before the 1st day of December, 1956 stands repealed vide Sections 3 and 5 read with clause (iii) of Section 2 of the said Act.]

Whereas it is expedient to consolidate and amend the law relating to Civil Courts in [the State of Rajasthan]

[Substituted and omitted vide item No. (1) of the Schedule to the Rajasthan Act

No. 2 of 1957

, published in the Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957. This Ordinance now extend to the whole of the State of Rajasthan including the Abu, Ajmer and Sunel areas and any law corresponding to this Ordinance in force in the Abu area. Ajmer area or Sunel area immediately before the 1st day of December, 1956 stands repealed vide Sections 3 and 5 read with clause (iii) of Section 2 of the said Act.]

Now Therefore in exercise of the powers conferred by paragraph (3) of Article X of the Covenant, His Highness, the Rajpramukh, is pleased to make and promulgate the following Ordinance:-

Chapter I

Preliminary

1.

Short title, extent and commencement.

(1)

This Ordinance may be called the Rajasthan Civil Courts Ordinance 1950.

(2)

[x x x]

[Substituted and omitted vide item No. (1) of the Schedule to the Rajasthan Act

No. 2 of 1957

, published in the Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957. This Ordinance now extend to the whole of the State of Rajasthan including the Abu, Ajmer and Sunel areas and any law corresponding to this Ordinance in force in the Abu area. Ajmer area or Sunel area immediately before the 1st day of December, 1956 stands repealed vide Sections 3 and 5 read with clause (iii) of Section 2 of the said Act.]

(3)

[x x x]

[Substituted and omitted vide item No. (1) of the Schedule to the Rajasthan Act

No. 2 of 1957

, published in the Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957. This Ordinance now extend to the whole of the State of Rajasthan including the Abu, Ajmer and Sunel areas and any law corresponding to this Ordinance in force in the Abu area. Ajmer area or Sunel area immediately before the 1st day of December, 1956 stands repealed vide Sections 3 and 5 read with clause (iii) of Section 2 of the said Act.]

2.

Definitions.

(1)

In this Ordinance, unless there is anything repugnant in the subject or context:-

(i)

[xxx]

[Substituted and omitted vide item No. (1) of the Schedule to the Rajasthan Act

No. 2 of 1957

, published in the Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957. This Ordinance now extend to the whole of the State of Rajasthan including the Abu, Ajmer and Sunel areas and any law corresponding to this Ordinance in force in the Abu area. Ajmer area or Sunel area immediately before the 1st day of December, 1956 stands repealed vide Sections 3 and 5 read with clause (iii) of Section 2 of the said Act.]

(ii)

[xxx]

[Substituted and omitted vide item No. (1) of the Schedule to the Rajasthan Act

No. 2 of 1957

, published in the Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957. This Ordinance now extend to the whole of the State of Rajasthan including the Abu, Ajmer and Sunel areas and any law corresponding to this Ordinance in force in the Abu area. Ajmer area or Sunel area immediately before the 1st day of December, 1956 stands repealed vide Sections 3 and 5 read with clause (iii) of Section 2 of the said Act.]

(iii)

[xxx]

[Substituted and omitted vide item No. (1) of the Schedule to the Rajasthan Act

No. 2 of 1957

, published in the Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957. This Ordinance now extend to the whole of the State of Rajasthan including the Abu, Ajmer and Sunel areas and any law corresponding to this Ordinance in force in the Abu area. Ajmer area or Sunel area immediately before the 1st day of December, 1956 stands repealed vide Sections 3 and 5 read with clause (iii) of Section 2 of the said Act.]

(iv)

["State" means the new State of Rajasthan as formed by section 10 of the States Re-organisation Act, 1956 (Central Act 37 of 1956).

[Substituted and omitted vide item No. (1) of the Schedule to the Rajasthan Act

No. 2 of 1957

, published in the Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957. This Ordinance now extend to the whole of the State of Rajasthan including the Abu, Ajmer and Sunel areas and any law corresponding to this Ordinance in force in the Abu area. Ajmer area or Sunel area immediately before the 1st day of December, 1956 stands repealed vide Sections 3 and 5 read with clause (iii) of Section 2 of the said Act.]

(v)

"Value" used with reference to a suit, proceeding or appeal, means the amount or value of the subject-matter of such suit, proceeding or appeal.

(2)

[[xxx]

3.

[x x x]

[Substituted and omitted vide item No. (1) of the Schedule to the Rajasthan Act

No. 2 of 1957

, published in the Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957. This Ordinance now extend to the whole of the State of Rajasthan including the Abu, Ajmer and Sunel areas and any law corresponding to this Ordinance in force in the Abu area. Ajmer area or Sunel area immediately before the 1st day of December, 1956 stands repealed vide Sections 3 and 5 read with clause (iii) of Section 2 of the said Act.]

4.

[xxx]

[Substituted and omitted vide item No. (1) of the Schedule to the Rajasthan Act No. 2 of 1957

, published in the Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957. This Ordinance now extend to the whole of the State of Rajasthan including the Abu, Ajmer and Sunel areas and any law corresponding to this Ordinance in force in the Abu area. Ajmer area or Sunel area immediately before the 1st day of December, 1956 stands repealed vide Sections 3 and 5 read with clause (iii) of Section 2 of the said Act.]

5.

Saving clause.

(1)

Until other provision is made under or in pursuance of this Ordinance, all Courts constituted, appointments, nominations, rules and orders made and jurisdiction and powers conferred under any law repealed by Section 4, shall be deemed to have been respectively constituted, made and conferred under this Ordinance.

(2)

[References in any enactment or document for the time being in force to the "Court of the Subordinate Judge" and to "Subordinate Judge" shall be deemed to have been made respectively to the "Court of the Senior Civil Judge/Additional Civil Judge" and to "Senior Civil Judge/Additional Civil Judge" as constituted and appointed or deemed as constituted and appointed under this Ordinance.]

[Substituted by Act No. 16 of 2015, dated 24.4.2015.]

(3)

[References in any enactment, document, judgement, decree, order or other proceedings of any Court, for the time being in force, to the "Court of the Civil Judge/Additional Civil Judge" or the "Civil Judge/Additional Civil Judge" and the "Court of the Munsiff/Additional Munsiff" or the "Munsiff/Additional Munsiff" shall be deemed to have been made respectively to the ["Court of the Senior Civil Judge/Additional Senior Civil Judge" or the "Senior Civil Judge/Additional Senior Civil Judge" and the "Court of the Civil Judge/ Additional Civil Judge" or the "Civil Judge/ Additional Civil Judge"]

[Inserted by Rajasthan Act No. 2 of 1994-Published in Rajasthan Gazette Extraordinary, Part IV-A, dated 29.1.1994, page 27 enforced w.e.f. 29.1.1994 = 1994 RSCS/Part II/page 79/H. 107]

as constituted or appointed or deemed as constituted or appointed under this Ordinance.]

Chapter II

Constitution of Courts

6.

Classes of Courts.

- There shall be the following classes of Subordinate Civil Courts in [the State of Rajasthan]

[Omitted and substituted vide item No. (1) of the Schedule of the Rajasthan Act

No. 2 of 1957

, published in Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957.]

, namely:-

(1)

the Court of the District Judge,

(2)

[the Special Civil Court]

[Inserted by Rajasthan Ordinance 2 of 1992, replaced by Rajasthan Act No. 20 of 1992 [12-8-1992].]

(3)

[the Court of the Senior Civil Judge/Additional Senior Civil Judge; and

[Substituted by Rajasthan Act No. 15 of 2014]

(4)

the Court of the Civil Judge/Additional Civil Judge].

7.

Power to fix and alter local limits of the jurisdiction of Courts.

(1)

The [State Government]

[Omitted and substituted vide item No. (1) of the Schedule of the Rajasthan Act

No. 2 of 1957

, published in Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957.]

may, by notification in the [Official Gazette]

[Omitted and substituted vide item No. (1) of the Schedule of the Rajasthan Act

No. 2 of 1957

, published in Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957.]

fix and alter the local limits of the jurisdiction of any Civil Court under this Ordinance.

(2)

If the same local jurisdiction is assigned to two or more [Senior Civil Judges]

[Substituted 'Civil Judges (Senior Division)' by Rajasthan Act No. 15 of 2014]

or two or more [Civil Judges]

[Substituted 'Civil Judges (Junior Division)' by Rajasthan Act No. 15 of 2014]

, the District Judge may assign to each of them, such civil business cognizable by the [Senior Civil Judge]

[Substituted 'Civil Judge (Senior Division)' by Rajasthan Act No. 15 of 2014]

or [Civil Judge]

[Substituted 'Civil Judge (Junior Division)' by Rajasthan Act No. 15 of 2014]

, as the case may be, as, subject to any general or special orders of the High Court, he thinks fit.

(3)

When civil business arising in any local area is assigned by the District Judge under sub-section (2) to one or two or more [Senior Civil Judges]

[Substituted 'Civil Judges (Senior Division)' by Rajasthan Act No. 15 of 2014]

, or to one or two or more [Civil Judges]

[Substituted 'Civil Judges (Junior Division)' by Rajasthan Act No. 15 of 2014]

, a decree or order passed by the [Senior Civil Judge]

[Substituted 'Civil Judge (Senior Division)' by Rajasthan Act No. 15 of 2014]

or [Civil Judge]

[Substituted 'Civil Judge (Junior Division)' by Rajasthan Act No. 15 of 2014]

shall not be invalid by reasons only of the case in which it was made having arisen wholly or in part in a place beyond the local area if that place is within the local limits fixed by the [State Government]

[Omitted and substituted vide item No. (1) of the Schedule of the Rajasthan Act

No. 2 of 1957

, published in Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957.]

under sub-section (1).

(4)

A Judge of a Court of Small Causes appointed to be also a [Senior Civil Judge]

[Substituted 'Civil Judge (Senior Division)' by Rajasthan Act No. 15 of 2014]

is a [Civil Judge]

[Substituted 'Civil Judge (Junior Division)' by Rajasthan Act No. 15 of 2014]

within the meaning of this section.

(5)

[The present local limits of the jurisdiction of every Civil Court, functioning at the commencement of this Ordinance shall be deemed to have been fixed under this Ordinance.]

[Omitted and substituted vide item No. (1) of the Schedule of the Rajasthan Act

No. 2 of 1957

, published in Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957.]

8.

Power to fix number of District Judges.

(1)

The [State Government]

[Substituted vide item No. (1) of the Schedule to the Rajasthan Act

No. 2 of 1957

, published in Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957]

may fix and from time to time alter the number of District Judges to be appointed for the whole of [State of Rajasthan]
[Substituted vide item No. (1) of the Schedule to the Rajasthan Act

No. 2 of 1957

, published in Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957]

,

(2)

The number of such Judges fixed at the commencement of this Ordinance shall continue to be the number, until varied, fixed under sub-section (1).

9.

Appointment of and vacancies among District Judges.

(1)

Appointments of persons to be, and the posting and promotion of District Judges shall be made by the [Governor]
[Substituted with effect from 1-11-1956 vide Part I of the Fourth Schedule of the Rajasthan Adaptation of Law (on State and Concurrent Subjects) Order, 1956, published in the Rajasthan Gazette, Part IV-C, Extraordinary', dated 1-11-1956.]
in consultation with the High Court.

(2)

A person not already in the service of the [State Government]

[Substituted vide item No. (1) of the Schedule to the Rajasthan Act

No. 2 of 1957

, published in Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957]

shall only be eligible to be appointed as District Judge, if he has been for not less than seven years an advocate or a pleader and is recommended by the High Court for appointment.

(3)

Whenever the office of District Judge is vacant by reason of death, resignation, removal or other cause, or whenever an increase in the number of District Judges has been made under section 8, the vacancy may be filled up or an appointment may be made, as the case may be, in accordance with the provisions of sub-secs. (1) and (2).

(4)

Nothing in this section shall be construed to prevent the appointment of a District Judge to discharge, for such period as may be deemed fit, in addition to the functions devolving on him as such District Judge, all or any of the functions of another District Judge.

10.

Additional Judges.

(1)

When the business pending before any District Judge or District Judges so requires for its speedy disposal, the [State Government]

[Substituted vide item No. (1) of the Schedule of the Rajasthan Act

No. 2 of 1957

, published in Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957.]

may, upon the recommendation of the High Court sanction the appointment of such number of Additional Judges [for the Court or Courts of such District Judge or District Judges]

[Inserted vide Section 3 of the Rajasthan Act No. 29 of 1957, published in the Rajasthan Gazette, Part IV-A, Extraordinary, dated 20-11-1957.]

, as may be necessary.

(2)

The provisions of section 9 shall apply also to the appointment, posting and promotion of, and filling up of vacancies among Additional Judges.

(3)

Any Additional Judge so appointed shall discharge any of the functions of a District Judge which the District Judge may assign to him, and in the discharge of those functions, he shall exercise the same powers as the District Judge.

11.

Temporary charge of office of District Judge.

(1)

In the event of the death, resignation or removal of a District Judge or of his being incapacitated by illness or otherwise for the performance of his duties, or of his absence from the place at which his Court is held [an Additional Judge of his Court or if no Additional Judge has been appointed for that Court or is present at that place]

[Substituted by Section 4 of Rajasthan Act No. 29 of 1957 published in Rajasthan Gazette, Part IV-A. Extraordinary, dated 20-11-1957.]

, the [Senior Civil Judge]

[Substituted 'Civil Judge (Senior Division)' by Rajasthan Act No. 15 of 2014]

if there be only one, and if there be more than one, the [Senior Civil Judge]

[Substituted 'Civil Judge (Senior Division)' by Rajasthan Act No. 15 of 2014]

who is senior in respect of date of appointment as [Senior Civil Judge]

[Substituted 'Civil Judge (Senior Division)' by Rajasthan Act No. 15 of 2014]

, present thereat, shall without relinquishing his ordinary duties, assume charge of the office of the District Judge and shall continue in charge thereof until the office is resumed by the District Judge or assumed by an officer duly appointed thereto.

(2)

While in charge of the office of the District Judge the Additional Judge or [Senior Civil Judge]

[Substituted 'Civil Judge (Senior Division)' by Rajasthan Act No. 15 of 2014]

, as the case may be, may, subject to any rules which the High Court may make in this behalf, exercise the powers of the District Judge.

12.

Power to fix number of [Senior Civil Judge]

[Substituted 'Civil Judge (Senior Division)' by Rajasthan Act No. 15 of 2014]

and [Civil Judge]

[Substituted 'Civil Judge (Junior Division)' by Rajasthan Act No. 15 of 2014]

.

(1)

The [State Government]

[Substituted vide Schedule to the Rajasthan Act

No. 2 of 1957

, published in Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957.]

may fix and from time to time alter the number of [Senior Civil Judge]

[Substituted 'Civil Judge (Senior Division)' by Rajasthan Act No. 15 of 2014]

and [Civil Judge]

[Substituted 'Civil Judge (Junior Division)' by Rajasthan Act No. 15 of 2014]

to be appointed for the whole of [the State of Rajasthan]

[Substituted vide Schedule to the Rajasthan Act

No. 2 of 1957

, published in Rajasthan Gazette, Part IV-A, Extraordinary'dated 5-1-1957.]

,

(2)

The number of [Senior Civil Judge]

[Substituted 'Civil Judge (Senior Division)' by Rajasthan Act No. 15 of 2014]

and [Civil Judge]

[Substituted 'Civil Judge (Junior Division)' by Rajasthan Act No. 15 of 2014]

working at the commencement of this Ordinance shall, until varied, be the number so fixed under sub-section (1).

[12A. Appointment of Additional [Civil Judges (Senior Division)]]

[Inserted by Section 2 of the Rajasthan Act No. 6 of 1956, published in Rajasthan Gazette Part IV-A, Extraordinary, dated 11-4-1956.]

or [Civil Judge]

[Substituted 'Civil Judge (Junior Division)' by Rajasthan Act No. 15 of 2014]

.- (1) For the purposes of assisting any [Civil Judge (Senior Division)]

[Substituted by Rajasthan Act No. 2 of 1994 w.e.f. 29.1.1994]

or [Civil Judge]

[Substituted 'Civil Judge (Junior Division)' by Rajasthan Act No. 15 of 2014]

in the disposal of the civil business on his file, the High Court may appoint a member of the Rajasthan Judicial Sendee, while he is not officiating in any leave vacancy and is not on deputation, to be an [Additional Civil Judge (Senior Division)]

[Substituted by Rajasthan Act No. 2 of 1994 w.e.f. 29.1.1994]

or [Civil Judge]

[Substituted 'Civil Judge (Junior Division)' by Rajasthan Act No. 15 of 2014]

.

(2)

An [Additional Civil Judge (Senior Division)]

[Substituted by Rajasthan Act No. 2 of 1994 w.e.f. 29.1.1994]

or [Civil Judge]

[Substituted 'Civil Judge (Junior Division)' by Rajasthan Act No. 15 of 2014]

so appointed, shall dispose of such civil business within the limits of his pecuniary jurisdiction, as may be transferred to him by the District Judge.]

13.

Appointment of and vacancies among [Senior Civil Judge]

[Substituted 'Civil Judge (Senior Division)' by Rajasthan Act No. 15 of 2014]

and [Civil Judge]

[Substituted 'Civil Judge (Junior Division)' by Rajasthan Act No. 15 of 2014]

.

- Appointments of persons to be [Senior Civil Judge]

[Substituted 'Civil Judge (Senior Division)' by Rajasthan Act No. 15 of 2014]

and [Civil Judge]

[Substituted 'Civil Judge (Junior Division)' by Rajasthan Act No. 15 of 2014]

shall be made by the [Governor]

[Substituted with effect from 1-11-1956, vide Part I of the Schedule of the Rajasthan Adaptation of Laws (on State and Concurrent subjects) Order, 1956, published in Rajasthan Gazette, Part IV-C, Extraordinary, dated 1-11-1956.]

in accordance with rules made by him in this behalf after consultation with the Rajasthan Public Service Commission and with the High Court.

14.

Transfer of proceedings on vacation of office by [Senior Civil Judge]

[Substituted 'Civil Judge (Senior Division)' by Rajasthan Act No. 15 of 2014]

.

(1)

In the event of the death, resignation or removal of a [Senior Civil Judge]

[Substituted 'Civil Judge (Senior Division)' by Rajasthan Act No. 15 of 2014]

or a [Civil Judge]

[Substituted 'Civil Judge (Junior Division)' by Rajasthan Act No. 15 of 2014]

or of his being incapacitated by illness or otherwise for the performance of his duties, or of his absence from the place at which his Court is held, the District Judge may transfer all or any of the proceedings pending in the Court of the [Senior Civil Judge]

[Substituted 'Civil Judge (Senior Division)' by Rajasthan Act No. 15 of 2014]

or the [Civil Judge]

[Substituted 'Civil Judge (Junior Division)' by Rajasthan Act No. 15 of 2014]

either to his own Court or to any Court under his administrative control competent to dispose of them.

(2)

Proceedings transferred under sub-section (1), shall be disposed of as if they had been instituted in the Court to which they are so transferred.

(3)

Provided that the District Judge may re-transfer to the Court of [Senior Civil Judge]

[Substituted 'Civil Judge (Senior Division)' by Rajasthan Act No. 15 of 2014]

or the [Civil Judge]

[Substituted 'Civil Judge (Junior Division)' by Rajasthan Act No. 15 of 2014]

or his successor any proceedings transferred under sub-section (1) to his own or any other Court.

(4)

For the purposes of proceedings which are not pending in the Court of the [Senior Civil Judge]

[Substituted 'Civil Judge (Senior Division)' by Rajasthan Act No. 15 of 2014]

or [Civil Judge]

[Substituted 'Civil Judge (Junior Division)' by Rajasthan Act No. 15 of 2014]

on the occurrence of an event referred to in sub-section (1), and with respect to which that Court has exclusive jurisdiction, the District Judge may exercise all or any of the jurisdiction of that Court.

15.

Adjournment of cases by Chief Ministerial Officer.

- When the presiding Judge, of any Court is absent and no other Judge of an equal, superior or inferior grade is functioning at the headquarters of such Court, or, if functioning, is also absent, the Chief Ministerial Officer of the Court shall possess the power of adjourning, from time to time, the hearing of any suit or other proceeding, and fix a day for the further hearing thereof.

16.

Place of sitting of Courts.

(1)

[State Government]

[Substituted vide item No. (1) of the Schedule of the Rajasthan Act
No. 2 of 1957

, Published in the Rajasthan Gazette, Part VI-A, Extraordinary, dated 5-1-1957.]

may, by notification in the [Official Gazette]

[Substituted vide item No. (1) of the Schedule of the Rajasthan Act
No. 2 of 1957

, Published in the Rajasthan Gazette, Part VI-A, Extraordinary, dated 5-1-1957.]

, fix and alter the place or places at which any Civil Court under this Ordinance is to be held.

(2)

All places at which any such Courts are held at the date of the commencement of this Ordinance, shall be deemed to have been fixed under this section.

17.

Seals of Courts.

- Every Civil Court under this Ordinance shall use a seal of such form and dimensions, as are prescribed by the [State Government]

[Substituted vide item No. (1) of the Schedule of the Rajasthan Act
No. 2 of 1957

, Published in the Rajasthan Gazette, Part VI-A, Extraordinary, dated 5-1-1957.]

Chapter III

Jurisdiction of Courts

18.

District Court to be Principal Civil Court.

(1)

The Court of District Judge shall be the Principal Civil Court of original civil jurisdiction in the area over which his jurisdiction extends.

(2)

Subject to the provisions of any enactment for the time being in force in the whole or any part of [State of Rajasthan]
[Substituted vide item No. (1) of the Schedule of the Rajasthan Act
No. 2 of 1957

, Published in the Rajasthan Gazette, Part VI-A, Extraordinary, dated 5-1-1957.]

the Court of the District Judge shall have jurisdiction to hear and determine all suits or original proceedings for the time being cognizable by Civil Courts without restriction, as regards their value.

19.

[Jurisdiction of other Civil Courts.

[Substituted by Rajasthan Act No. 15 of 2014]

(1)

Subject as aforesaid,-

(i)

the Court of a Senior Civil Judge shall have jurisdiction to hear and determine any suit or original proceedings of a civil nature of which the value does not exceed five lakh rupees, and

(ii)

the Court of a Civil Judge shall have jurisdiction to hear and determine any suit or original proceedings of which the value does not exceed two lakh rupees.

(2)

Notwithstanding anything contained in sub-Section (1), the suits or proceedings already instituted on the date of commencement of the Rajasthan Civil Courts (Amendment) Act, 2014 (Act No. 20 of 2014) may be heard and determined by the same court wherein such suit or proceeding has been instituted.]

19A.

[Special Civil Court.

[Inserted by Rajasthan Act 20 of 1992, w.e.f. 12-8-1992.]

(1)

Whenever the State Government is of the opinion that it is necessary to do so, it may, in consultation with the High Court, establish by notification in the Official Gazette, a Special Civil Court for the institution, hearing and determination of suits and other proceedings of a civil nature in respect of any matter of public importance.

(2)

The Special Civil Court established under sub-section (1) shall be presided over by a Judge who shall not be below the rank of a District Judge.

(3)

The territorial jurisdiction of such Court shall be such as may be notified by the State Government in the Official Gazette from time to time in consultation with the High Court.

(4)

Subject to any other law for the time being in force no Civil Court having ordinary jurisdiction in the matter shall entertain, hear or determine any suit or proceeding for which such Special Civil Court has been established.]

20.

Appeals from District and Additional Judges.

(1)

Save as otherwise provided by any enactment for the time being in force, an appeal from a decree or order of a District Judge or Additional Judge, shall lie to the High Court.

(2)

An appeal shall not lie to the High Court from a decree or order of an Additional Judge in any case in which, if the decree or order had been made by the District Judge, an appeal would not lie to that Court.

20A.

[Appeals from decree or order of Special Civil Court.

[Inserted by Rajasthan Act 20 of 1992, w.e.f. 12-8-1992.]

- An appeal from a decree or order of a Special Civil Court established under section 19-A shall lie to the High Court.]

21.

Appeals from [Senior Civil Judges and Civil Judges.]

[Substituted 'Civil Judges (Senior Division) and Civil Judges (Junior Division)' by Rajasthan Act No. 15 of 2014]

(1)

Save as aforesaid, an appeal from a decree or order of a [Civil Judge (Senior Division)]

[Substituted 'Civil Judges (Junior Division)' by Rajasthan Act No. 15 of 2014]

shall lie-

(a)

to the District Judge where the value of original suit in which or in any proceedings arising out of which the decree or order was made, does not exceed [five lakh rupees]

[Substituted 'fifty thousand rupees' by Rajasthan Act No. 15 of 2014]

; and

(b)

to the High Court in any other case.

(2)

Save as aforesaid, an appeal from a decree or order of a [Civil Judge (Senior Division)]

[Substituted 'Civil Judges (Junior Division)' by Rajasthan Act No. 15 of 2014]

shall lie to the District Judge.

(3)

Where the function of receiving any appeals which lie to the District Judge under sub-section (1) or sub-section (2) has been assigned to an Additional Judge, the appeals may be preferred to the Additional Judge.

(4)

The High Court may, with the previous sanction of the State Government, direct by notification in the Official Gazette that appeals lying to the District Judge under sub-section (2) from all or any of the decrees or orders of any [Civil Judge (Senior Division)]

[Substituted 'Civil Judges (Junior Division)' by Rajasthan Act No. 15 of 2014]

shall be preferred to the Court of such [Civil Judge (Senior Division)]

[Substituted by Rajasthan Act No. 2 of 1994 w.e.f. 29.1.1994.]

as may be mentioned in the Notification and appeals shall thereupon be preferred accordingly.]

[21A. Applicability of section 21 to certain suits. - The provisions of section 21 as amended by the Rajasthan Civil Courts (Amendment) Act, 1992 (Rajasthan Act 20 of 1992)

[Inserted by Rajasthan Act 29 of 1957 [20-11-1957].]

, shall apply to all suits and proceedings instituted before and pending at the commencement of the said Act.]

22.

Power to transfer to [[Senior Civil Judges]

[Substituted by Rajasthan Act No. 2 of 1994 w.e.f. 29.1.1994]

] appeals from [Civil Judges]

[Substituted 'Civil Judges (Junior Division)' Rajasthan Act No. 15 of 2014]

.

(1)

A District Judge may transfer to any [[Senior Civil Judge]

[Substituted by Rajasthan Act No. 2 of 1994 w.e.f. 29.1.1994]

], under his administrative control, any appeal pending before him from the decrees or orders of [[Civil Judges]

[Substituted by Rajasthan Act No. 2 of 1994 w.e.f. 29.1.1994]

].

(2)

The District Judge may, withdraw any appeal so transferred, and either hear and dispose of it himself or transfer it to a Court under his administrative control competent to dispose of it.

(3)

Appeals transferred under this section shall be disposed of subject to the rules applicable to like appeals when disposed of by the District Judge.

[22A. Special provision for the transfer of certain appeals. - Notwithstanding anything contained in section 21 and 22, an

appeal from a decree or order of a subordinate Judge of the Ajmer area passed before the first day of January, 1958 in a suit, or in any proceeding arising out of a suit, of which the value did not exceed two thousand rupees, may be transferred by the District Judge to any Civil Judge under his administrative control.]

[Inserted by Rajasthan Act 5 of 1958 [17-3-1958]

]

23.

Exercise by [[Senior Civil Judge]

[Substituted by Rajasthan Act No. 2 of 1994 w.e.f. 29.1.1994]

] of jurisdiction of District Court in certain proceeding.

(1)

The High Court may, by general or special order, authorise any [[Senior Civil Judge]

[Substituted by Rajasthan Act No. 2 of 1994 w.e.f. 29.1.1994]

] to take cognizance of or any District Judge to transfer to a [[Senior Civil Judge]

[Substituted by Rajasthan Act No. 2 of 1994 w.e.f. 29.1.1994]

] under his control, any of the proceedings next hereinafter mentioned or any class of those proceedings specified in the order.

(2)

The proceedings referred to in sub-section (1), are the following namely:-

(a)

proceedings under the Indian Succession Act, 1925 of the Central Legislature, which cannot be disposed of by District Delegates; an

(b)

proceedings under the Guardians and Wards Act, 1890 of the Central Legislature.

(3)

The District Judge may withdraw any such proceedings taken cognizance of by, or transferred to, a [[Senior Civil Judge]

[Substituted by Rajasthan Act No. 2 of 1994 w.e.f. 29.1.1994]

] and may either himself dispose of them or transfer them to a Court under his administrative control competent to dispose of them.

(4)

Proceedings taken cognizance of by, or transferred to a [[Senior Civil Judge]

[Substituted by Rajasthan Act No. 2 of 1994 w.e.f. 29.1.1994]

] as the case may be, under this section shall be disposed of by him subject to the rules applicable to like proceedings when disposed of by the District Judge.

24.

Power to invest Substituted vide item No. 1 of the [[Senior Civil Judges]

[Schedule to the Rajasthan Act

No. 2 of 1957

, published in the Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957.]

] and [[Senior Civil Judges]

[Substituted by Rajasthan Act No. 2 of 1994 w.e.f. 29.1.1994]

] with Small Cause Court jurisdiction.

- The [State Government]

[Schedule to the Rajasthan Act

No. 2 of 1957

, published in the Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957.]

may by notification in the [Official Gazette]

[Schedule to the Rajasthan Act

No. 2 of 1957

, published in the Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957.]

, confer, within such local limits as it thinks fit, upon any [[Senior Civil Judge]

[Substituted by Rajasthan Act No. 2 of 1994 w.e.f. 29.1.1994]

] or [[Senior Civil Judge]

[Substituted by Rajasthan Act No. 2 of 1994 w.e.f. 29.1.1994]

], the jurisdiction of a Judge of a Court of Small Causes under the Rajasthan Small Cause Courts Ordinance, 1950, for the trial of suits cognizable by such Courts, upto such value, not exceeding five hundred rupees in the case of a [[Senior Civil Judge]

[Substituted by Rajasthan Act No. 2 of 1994 w.e.f. 29.1.1994]

] or one hundred rupees in the case of a [[Senior Civil Judge]

[Substituted by Rajasthan Act No. 2 of 1994 w.e.f. 29.1.1994]

], as it thinks fit, and may withdraw any jurisdiction so conferred:

[Provided that the [State Government]

[Added by section 2 of the Rajasthan Act No. III of 1952 published in Rajasthan Gazette No. 149, dated 2nd February, 1952.]

may by notification in the [Official Gazette]

[Substituted vide item No. I of the Schedule to the Rajasthan Act

No. 2 of 1957

, published in the Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957.]

delegate to the High Court its power under this section],

Chapter IV

Supplementary Provisions

25.

Administrative control of Courts.

(1)

The control over District Courts and Courts subordinate thereto including the posting and promotion of and the grant of leave to persons belonging to the judicial service of [the State of Rajasthan]

[Substituted vide item No. I of the Schedule to the Rajasthan Act

No. 2 of 1957

, published in the Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957.]

and holding any post inferior to the post of District Judge shall be vested, in the High Court but nothing herein contained shall be construed as taking away from any such person the right of appeal which he may have under the law regulating the conditions of his service for the time being in force or as authorising the High Court to deal with him otherwise than in accordance with the conditions of his service prescribed under such law.

(2)

Subject to the provisions of sub-section (1), the District Judge shall have control over all the Civil Courts under this Ordinance within the local limits of his jurisdiction.

[25A. Control over Special Civil Court to vest in the High Court. - Notwithstanding anything contained in this Ordinance, the control over special civil courts established under section 19-A shall directly vest in the High Court.]

[Added by Rajasthan 20 of 1992 [12-8-1992].]

26.

Vacation of Courts.

- [(1)The High Court shall prepare a list of days to be observed in each year as close holidays in the Civil Courts.]

[Substituted vide Notification F. 2(28) Vidhi/2/2006, dated 13.10.2006-Rajasthan Gazette, Extraordinary, Part IV-A, dated 16.10.2006, page 23(1) (w.e.f. 27.7.2006)= 2006 RSCS/Part II/page 579/H. 412]

(2)

The list shall be published in the [Official Gazette]

[Substituted vide item No. I of the Schedule to the Rajasthan Act

No. 2 of 1957

, published in the Rajasthan Gazette, Part IV-A, Extraordinary, dated 5-1-1957.]

.

(3)

A judicial act done by a Civil Court on a day specified in the list shall not be invalid by reason only of its having been done on that day.

27.

Continuance of proceedings of courts ceasing to have jurisdiction.

(1)

Where any Civil Court under this Ordinance has from any cause ceased to have jurisdiction with respect of to any case, any proceeding in relation to that case which, if that Court had not ceased to have jurisdiction, might have been had therein, may be had in the Court to which the business of the former Court has been transferred.

(2)

Nothing in this section applies to cases for which provision is made in section 114 and Order 47, Rule 1 of the Code of Civil Procedure, 1908, of the Central Legislature or in any other enactment for the time being in force.

28.

Certain decisions to be according to personal law.

(1)

Where in any suit or other proceeding it is necessary for a Civil Court to decide any question regarding succession, inheritance, marriage or caste, or any religious usage or institution the Mohammadan Law in cases where the parties are Mohammadans, and the Hindu Law in cases where the parties are Hindus, shall form the rule of decision except in so far as such law has, by legislative enactment, been altered or abolished.

(2)

In cases not provided for by sub-section (1) or by any other law for the time being in force, the court shall act according to justice, equity and good conscience.

29.

Judges not to try suits in which they are interested.

(1)

The Presiding Officer of a Civil Court shall not try any suit or other proceeding to which he is a party or in which he is personally interested or any appeal against a decree or order passed by himself in another capacity.

(2)

When any such suit, proceeding or appeal as is referred to in sub-section (1) comes before any such officer, he shall forthwith transmit the record of the case to the Court to which he is immediately subordinate, with a report of the circumstances attending the reference, and the superior Court shall thereupon dispose of the case in accordance with the provisions of section 24 of the Code of Civil Procedure, 1908, of the Central Legislature.

30.

Subordination of Courts to District Court.

- For the purposes of the last foregoing section, the Presiding Officer of a Court subject to the administrative control of the District Judge shall be deemed to be immediately subordinate to the Court of the District Judge, and for the purpose of the said Code of Civil Procedure, the Court of such an officer shall be deemed to be of a grade inferior to that of the Court of the District Judge.

31.

Licensed petition writers.

(1)

The High Court may from time to time make rules consistent with this Ordinance and any other law for the time being in force-

(a)

declaring what persons shall be permitted to act as petition writers in the Civil Courts subordinate to it,

(b)

regulating the issue of licences to such persons, the conduct of business by them and the scale of fees to be charged by them,

(c)

providing a penalty of fine not exceeding fifty rupees for the breach of any of the rules so made, and

(d)

determining the authority by which such breaches of the rules shall be investigated and the penalties imposed.

(2)

Every fine imposed under clause (d) of sub-section (1) shall be recoverable as if it were a fine imposed by a Magistrate

in the exercise of his ordinary original jurisdiction.

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